



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10162 (EXTENSION)
ORIGINAL November 1, 1989

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10162 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

SEP 27 1991

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Ibex Industries Inc.
Calvert City, KY

June 3, 1991



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

NOV 1 1989

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10162

1. Ibex Industries, Inc., Calvert City, Kentucky, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark and sell the packaging described in paragraph 7 below for use in the transportation of the hazardous materials described in paragraph 3 below in commerce, subject to the limitations and special requirements specified herein. This exemption authorizes the use of a non-DOT specification cargo tank with a full opening rear head, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Ibex Industries' application dated April 4, 1989, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquid and semi-solid waste material, including mixtures, compatible with the packaging, containing flammable liquids or corrosives or poison B materials, or combinations thereof, classed as flammable liquid, corrosive material or poison B as appropriate, specifically identified to and acknowledged in writing by the Office of Hazardous Materials Transportation (OHMT) prior to first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). Specific commodity name or generic description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.119(a) and (m), 173.245(a), 173.346(a), 178.340-7, 178.340-8(c), 178.342-5, 178.343-5.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification cargo tank conforming with Ibex drawings DOTMOD dated March 29, 1989, DOTTRALR dated April 3, 1989 or DOTSEMI dated March 29, 1989 on file with the (OHMT). The cargo tanks must be designed and constructed in accordance with DOT Specification MC-307 or MC 312 (49 CFR 178.340, 178.342, 178.343) except as follows:

a. The cargo tank must be designed, built, and certified in accordance with Section VIII of the ASME Code to a minimum design pressure as follows and must be stamped for both internal and external pressure ratings. The tank may have a full opening rear head.

<u>Basic Cargo Tank Specification</u>	<u>Design Pressure (psig)</u>		<u>Minimum Test Pressure (psig)</u>
	<u>Internal (See Note 1)</u>	<u>External (See Note 2)</u>	
MC 307	25	15	37.5
MC 312	25	15	37.5

Note 1: The design pressure must be at least equal to the maximum pressure used for unloading.

Note 2: Vacuum tanks must have an external design pressure of at least 15 psi.

b. Circumferential reinforcement must comply with 49 CFR 178.340-7 except the maximum unreinforced portion of the shell may exceed 60-inches provided thickness and tensile strength of the shell material in combination with the frame and circumferential reinforcement produces structural integrity at least equal to that prescribed in 49 CFR 178.340-4(b).

c. In place of internal valves prescribed in 49 CFR 178.342-5(a) and 178.343-5(b), each tank may be equipped with one 4-inch maximum diameter product inlet opening and one 6-inch maximum diameter product outlet opening located on the full opening rear head. Each product inlet opening and its associated piping which is located below the normal liquid level of the lading and each product outlet must be equipped with a remotely activated self-closing valve system. The valve must be located as close as practical to the rear head of the cargo tank. The self-closing valve system must be capable of being remotely operated from a distance of more than 10 feet from the self-closing valve. Each inlet and outlet must be equipped with an additional stop-off valve, blank flange or sealing cap.

d. The metal identification plate and the manufacturer's certificate may not be marked to indicate compliance with DOT MC-307 or MC-312 specifications but instead must bear reference to DOT-E 10162.

e. Tanks that are to be used in transporting flammable waste materials must be equipped with a spring loaded relief valve.

f. The first cargo tank manufactured with a full opening rear head must be hydrostatically tested to 45 psig. Each tank manufactured with a full opening rear head must be as shown on the drawings mentioned in the introductory text of this paragraph. All product inlets and associated piping located below the normal liquid level of lading and all lading discharge outlets on the full opening rear head must be equipped with a remote operated self closing valve system.

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging covered by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Each cargo tank must be reinspected and retested once each year in accordance with 49 CFR 177.824 as prescribed for DOT Specification MC-307 or MC 312 cargo tanks, as appropriate, at one and one-half times the sum of the design pressure plus the static head. Additionally, the gaskets on the full opening rear head must be: (1) cleaned after each load;

(2) visually inspected at least once every three months for cracks or splits caused by weather or wear; and (3) replaced if cuts, cracks of one-half inch or more are found.

d. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 10162".

e. The Manufacturer's Data Report for the first cargo tank fabricated must be submitted to the OHMT prior to the initial shipment.

f. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

g. Each packaging manufactured in accordance with the requirements of this exemption must be marked in a manner which identifies the physical location (city and state) of the facility at which it is manufactured.

9. REPORTING REQUIREMENTS. Any accident involving cargo tank rollover or any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. September 30, 1991.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

NOV 1 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA.